STRIKE ON TRUST

dubious hysterectomy exposes an ailing system



VICTIM OF THE SYSTEM Anita Devi at her home in Parmanandpur village, Saran, Bihar

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facility, Kusum Hospital, had failed to resolve. What followed, she alleges, was a hysterectomy carried out without her informed consent.

MULTIPLE VICTIMS?

The hospital denies the allegation. Advocate Bipin Bihari, representing Evers, tells INDIA TODAY that, prima facie, the allegation appears to be incorrect on the basis of documents available with the doctor. Yet Anita's case has blown up into a controversy drawing in even human rights bodies, raising questions about the potential abuse of public insurance schemes. Perhaps even systematically, with multiple victims.

Preliminary findings indicate the hospital may have carried out unnecessary surgical procedures, potentially in order to secure higher insurance claims under the Pradhan Mantri Jan Arogya Yojana (PMJAY), says the Bihar Swasthya Suraksha Samiti (BSSS), the state's nodal agency for implementing the scheme.

Takeaways

- **Patna hospital suspended from PMJAY after probe**
- **Alleged hysterectomy sans consent on 37-yr-old**

Its inquiry pointed to troubling discrepancies. An incisional hernia treatment package was booked; a hysterectomy (removal of the uterus) was allegedly performed. The probe—conducted by a three-member team of doctors constituted by the civil surgeon, Patna, in January—found the patient had no prior surgical history, and that diagnostic documents, including ultrasound reports, were allegedly forged.

The BSSS says PMJAY's credibility and the safety of beneficiaries remain its highest priorities. The necessary virtue-signalling followed. Evers's PMJAY empanelment was suspended, pending a detailed probe. No FIR against the hospital has been reported, though.

HUMAN RIGHTS QUESTION

In mid-March, the Bihar Human Rights Commission (BHRC) took suo motu cognisance of the case, after reports of multiple questionable hysterectomies. Justice Ananta Manohar Badar, BHRC chairperson, has sought a detailed report. In a letter referencing six cases, whose details are not public yet and which may not pertain to the hospital in question, Patna's district magistrate, senior superintendent of police and civil surgeon have been asked to respond.

Restoring trust won't be easy. This is not the first time Bihar has confronted allegations of illegal hysterectomies. Earlier cases in Araria and Samastipur had the same pattern: economically vulnerable women being allegedly subjected to invasive procedures without clear medical necessity. Each outrage elicited gestures of official expiation. Yet the recurrence of such allegations suggests an unresolved systemic disease.

At its heart is a skew in the PMJAY design. It has expanded access to medical treatment for millions of poor families, but its reimbursement-based model creates incentives to resort to higher-value interventions. Especially in poorly monitored environments, treatment can turn into pure transaction.

The data backs this. In Bihar, 234 hospitals have been stripped of PMJAY empanelment (presently, 433 public and 774 private hospitals are empanelled). Across India, 2,021 hospitals have been delisted, as the Rajya Sabha was informed in March. What's visible can always be just the tip of the iceberg. Calling for a comprehensive response from health and administrative authorities, BHRC Registrar Shailendra Kumar Singh has assured that swift justice will be delivered in Anita's case. ■